

Rev. 4/18

UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT
CIVIL APPEAL STATEMENT

Please TYPE. Attach additional pages if necessary.

11th Circuit Docket Number: 20-12897-G

Caption: DeepGulf, Inc and Toke Oil and Gas, S.A. V. Marc M. Moszkowski	District and Division: <u>Northern District of Florida (Pensacola)</u> Name of Judge: <u>Judge T. Kent Wetherell II</u> Nature of Suit: <u>Civil</u> Date Complaint Filed: <u>8/25/2018</u> District Court Docket Number: <u>3:18-CV-01486-TKW-MJF</u> Date Notice of Appeal Filed: <u>7/31/2020</u> ☐ Cross Appeal ☐ Class Action Has this matter previously been before this court? ☐ Yes ☒ No If Yes, provide (a) Caption: _____ (b) Citation: _____ (c) Docket Number: _____
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For Appellant: ☒ Plaintiff ☐ Defendant ☐ Other (Specify)	Attorney Name Braden K. Ball, Jr.	Mailing Address 	Telephone, Fax, Email (850) 432-9818 phone; (850) 432-9830 facsimile; braden@lawpensacola.com
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For Appellee: ☐ Plaintiff ☒ Defendant ☐ Other (Specify)	Pro Se	Chalet De Bulvedere Le Croy 73350 Champagny-EN Vanoise, FF	m.moszkowski@deepgulf.net
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Please CIRCLE/CHECK/COMPLETE the items below and on page 2 that apply.

Jurisdiction	Nature of Judgment	Type of Order	Relief
☐ Federal Question ☒ Diversity ☐ US Plaintiff ☐ US Defendant	☒ Final Judgment, 28 USC 1291 ☐ Interlocutory Order, 28 USC 1292(a)(1) ☐ Interlocutory Order Certified, 28 USC 1292(b) ☐ Interlocutory Order, Qualified Immunity ☐ Final Agency Action (Review) ☐ 54(b)	☐ Dismissal/Jurisdiction ☐ Default Judgment ☒ Summary Judgment ☒ Judgment/Bench Trial ☐ Judgment/Jury Verdict ☐ Judgment/Directed Verdict/NOV ☐ Injunction ☐ Other _____	Amount Sought by Plaintiff: \$ <u>346,000</u> Amount Sought by Defendant: \$ _____ Awarded: \$ <u>0</u> to _____ Injunctions: ☐ TRO ☐ Granted ☐ Preliminary ☐ Denied ☐ Permanent

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Based on your present knowledge:

- (1) Does this appeal involve a question of First Impression? ☐ Yes ☒ No
What is the issue you claim is one of First Impression? _____
- (2) Will the determination of this appeal turn on the interpretation or application of a particular case or statute? ☐ Yes ☒ No
If Yes, provide
(a) Case Name/Statute _____
(b) Citation _____
(c) Docket Number if unreported _____
- (3) Is there any case now pending or about to be brought before this court or any other court or administrative agency that
(a) Arises from substantially the same case or controversy as this appeal? ☐ Yes ☒ No
(b) Involves an issue that is substantially the same, similar, or related to an issue in this appeal? ☐ Yes ☒ No
If Yes, provide
(a) Case Name _____
(b) Citation _____
(c) Docket Number if unreported _____
(d) Court or Agency _____
- (4) Will this appeal involve a conflict of law
(a) Within the Eleventh Circuit? ☐ Yes ☒ No
(b) Among circuits? ☐ Yes ☒ No
If Yes, explain briefly:

- (5) Issues proposed to be raised on appeal, including jurisdictional challenges:

Whether the District Court erred in granting Summary Judgment against Plaintiffs as to Counts II, III, IV, V, VI and IX of Plaintiffs' Complaint and whether the District Court erred in denying Plaintiffs' Motion to Amend.

I CERTIFY THAT I SERVED THIS CIVIL APPEAL STATEMENT ON THE CLERK OF THE U.S. COURT OF APPEALS FOR THE ELEVENTH CIRCUIT AND
SERVED A COPY ON EACH PARTY OR THEIR COUNSEL OF RECORD, THIS 10th DAY OF August, 2020.

Braden K. Ball, Jr

NAME OF COUNSEL (Print)

B.K. Ball
SIGNATURE OF COUNSEL